

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

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ROBERT A. MOGHRABY,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER RACHID BENLHOUSAIN: (Tax. Reg. # 945504),
and POLICE OFFICERS JOHN and JANE DOE #'s 1-8
(names and numbers are unknown at present) and
Other unidentified members of the New York City
Police Department,

Defendants.
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SUMMONS

Index #

Basis of Venue:
Place of Incident

Plaintiff designates
Queens County
as the place of trial

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 11, 2020

Respectfully submitted,

/s/

Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO: CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NEW YORK CITY POLICE OFFICER RACHID BENLHOUSAIN (Tax Reg. # 945504), Highway
Unit #3, Queens County, New York.

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X
ROBERT MOGHRABY

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE OFFICER
RACHID BENLHOUSAIN: (Tax. Reg. # 945504) and
POLICE OFFICERS JOHN and JANE DOE #'s 1-8
(names and numbers are unknown at present) and Other
unidentified members of the New York City Police
Department,

Defendants.
-----X

Plaintiff **Robert Moghraby**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and denial of a fair trial of the plaintiff. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Robert Moghraby is a citizen of the United States and a resident of New York.
3. POLICE OFFICER RACHID BENLHOUSAIN: (Tax. Reg. # 945504) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER RACHID BENLHOUSAIN: (Tax. Reg. # 945504) is being sued in his/her individual capacity and official capacity.
5. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

6. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
7. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officers John and Jane Doe # 2-8 are being sued in his/her individual capacity and official capacity.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff in furtherance of State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
13. The City of New York held a 50(h) hearing examination of the Plaintiff on June 10, 2019.

STATEMENT OF FACTS

14. On December 20, 2018 at approximately 1:00 a.m. at Long Island Expressway between Springfield Boulevard and Utopia Parkway, in Queens, New York, Mr. Moghraby was in the backseat of his brother's car when police officers stopped and unlawfully searched the car. He was arrested for obstruction of government administration. His brother was also arrested.
15. Mr. Moghraby denies the charge. He did nothing to interfere with police arresting his brother. Also, defendant police claimed he was drinking and smelled like alcohol, but he was sober. If there was a smell of alcohol on his person, it was due to his position as a bartender at his job, Colbeh Catering. He is very professional and never drinks on the job.
16. Defendants used undue force upon Mr. Moghraby when placing him under arrest, having no privilege whatsoever to do so. The defendant officer placed handcuffs unnecessarily tight, then pulled his arms up and away from his body, causing extreme pain. When Mr. Moghraby asked them to stop, defendant officer demanded Mr. Moghraby say "I'm sorry" before he would stop assaulting him.
17. The defendants' lack of evidence and fabrication of evidence resulted in Mr. Moghraby's incarceration for over 17 hours. He also missed a day of work because of the arrest and was not compensated for it.
18. At arraignment Mr. Moghraby received and Adjournment in Contemplation of Dismissal ("ACD"). The charges were sealed and dismissed on June 19, 2019.

FIRST CAUSE OF ACTION

ASSAULT

19. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 18 with the same force and effect as if more fully set forth at length herein.
20. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff. Plaintiff was assaulted by Rachid Benlhoussain and other officers.
21. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
22. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

BATTERY

23. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 22 with the same force and effect as if more fully set forth at length herein.
24. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery. Plaintiff was assaulted by police officers.
25. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
26. The City, as the employer of Defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION**FALSE ARREST AND FALSE IMPRISONMENT**

27. Plaintiff repeats and alleges paragraphs 1 through 26 as if fully set forth herein.
28. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
29. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
30. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION**NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

31. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth at length herein.

32. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FIFTH CAUSE OF ACTION

FAILURE TO INTERVENE

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
35. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
36. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
37. Defendants were at all times agents, servants, and employees acting within the scope of her employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
38. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

NEGLIGENCE

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.
40. Defendants owed a duty of care to plaintiff.
41. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
42. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
43. All of the foregoing occurred without any fault by plaintiff.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.
46. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
47. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
48. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

EIGHTH, NINTH, AND TENTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Fifth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal first-amendment-retaliation claim (9th claim); false-arrest/excessive-force/unlawful-search claims (10th claim); and deprivation-of-fair-trial claim (11th claim).

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.
50. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
51. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
52. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his First, Fourth, Fifth, Eighth and Fourteenth Amendment rights.
53. In particular, Plaintiff alleges that Defendants' retaliatory and harassing false arrest, use of undue and excessive force upon him causing physical injury, unlawful search, and fabrication of evidence

violated his First, Fourth, Fifth, Eighth and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.

54. Insofar as Plaintiff's federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiff repeats and reiterates the above allegations in support of the federal claims here.
55. In the event Plaintiff prevails at trial on one, some or all of his 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, she also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

ELEVENTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.
57. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
58. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
59. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
60. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.

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ATTORNEY'S VERIFICATION

SYDNEY O'HAGAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
March 11, 2020

_____/s/
Sydney O'Hagan, Esq.